PRESS RELEASE

# Michigan Doctor Sentenced to Four Years for $6.3M Medicare Fraud Scheme

Thursday, June 26, 2025

**For Immediate Release**

Office of Public Affairs

A Michigan doctor was sentenced today to four years in prison for a $6.3 million Medicare fraud scheme in which elderly and disabled patients were sent thousands of orthotic braces that they did not need.

According to court documents and evidence presented at trial, Sophie Toya, M.D., 56, of Bloomfield Hills, prescribed over 7,900 orthotic braces to more than 2,600 Medicare patients during a six-month period. The patients were solicited through deceptive television commercials offering free back braces. When they called the advertised telephone number, they were persuaded to accept braces for other parts of their bodies, with the promise that Medicare would pay. Toya spoke to some of these patients briefly over the phone, and she had no contact at all with the others. Toya nonetheless signed orders prescribing more than 7,900 braces, including prescribing four or more braces to nearly 1,000 patients.

Toya prescribed as many as 136 braces in a day, 12 braces for a single patient, and numerous braces for undercover agents posing as Medicare beneficiaries after speaking with them by telephone for less than a minute. The prescriptions and accompanying medical records signed by Toya falsely represented that the braces were medically necessary and that she diagnosed the beneficiaries, had a plan of care for them, and recommended that they receive certain additional treatment. In the case of one patient, to whom Toya prescribed five braces for which Medicare was billed $3,883, she falsely attested that she evaluated the patient and that the patient was mobile when, in fact, the patient had long been confined to a wheelchair, could not walk or stand, and was suffering from a dangerous spinal infection that could not be treated by braces but instead required spinal surgery.

Toya's false prescriptions were used by brace supply companies to bill Medicare more than $6.3 million. Toya was paid approximately $120,000 by purported telemedicine companies in exchange for signing the fraudulent prescriptions.

On May 10, 2024, Toya was convicted following an eight-day trial on one count of health care fraud and five counts of false statements relating to health care matters. Toya was also ordered to pay $3,606,935 in restitution and $120,475 in forfeiture.

Matthew R. Galeotti, Head of the Justice Department's Criminal Division; Assistant Director in Charge Jose A. Perez of the FBI Criminal Division; and Deputy Inspector General for Investigations Christian J. Schrank of the Department of Health and Human Services Office of Inspector General (HHS-OIG) made the announcement.

The FBI and HHS-OIG investigated the case. The case was charged as part of Operation Rubber Stamp, a coordinated nationwide law enforcement operation that targeted medical professionals who participated in fraudulent telemedicine schemes.

Assistant Chief Rebecca Yuan and Trial Attorney Chris Wenger of the National Rapid Response Strike Force of the Criminal Division's Fraud Section prosecuted the case.

The Fraud Section leads the Criminal Division's efforts to combat health care fraud through the Health Care Fraud Strike Force Program. Since March 2007, this program, currently comprised of 9 strike forces operating in 27 federal districts, has charged more than 5,800 defendants who collectively have billed federal health care programs and private insurers more than $30 billion. In addition, the Centers for Medicare & Medicaid Services, working in conjunction with HHS-OIG, are taking steps to hold providers accountable for their involvement in health care fraud schemes. More information can be found at www.justice.gov/criminal-fraud/health-care-fraud-unit.

*Updated June 26, 2025*

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**Topic**

**HEALTHCARE FRAUD**

**Components**

Criminal Division | Criminal - Criminal Fraud Section | Federal Bureau of Investigation (FBI)

Press Release Number: 25-670

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